

24TRCV01288 24TRCV01288

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C5%2C07%2F13%2F2026

Source SHA-256: ae0b7fdb39d3bd6c84bffa0b03d8c3613238ec34825e99e619e2a6b5a0d61b0

Case Number: 24TRCV01288 Hearing Date: July 13, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LETICIA RODRIGUEZ REYES

;

Plaintiff,

vs.

AMERICAN HONDA MOTOR
COMPANY, INC.

;

Defendant.

Case

No.:

24TRCV01288

Hearing

Date:

July
13, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S

MOTION TO COMPEL COMPLIANCE WITH THE COURT'S FEBRUARY 23, 2026, ORDER AND
REQUESTS FOR TERMINATING SANCTIONS, OR, IN THE ALTERNATIVE, EVIDENTIARY AND
MONETARY SANCTIONS

MOVING PARTY: Defendant,
American Honda Motor Co., Inc.

RESPONDING

PARTY: Plaintiff,
Leticia Rodriguez

(1)

Defendant

American Honda Motor Co., Inc.'s Motion to Compel Compliance with the Court's
February 23, 2026, Order and Requests for Terminating Sanctions, or in the
Alternative, Evidentiary and Monetary Sanctions is GRANTED IN PART AND DENIED
IN PART pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and
2025.450.

The Court considers the moving papers filed on
April 27, 2026, and the opposition brief filed on June 29, 2026. To date, no reply brief has been filed.

BACKGROUND

Factual Background

On April 15, 2024, plaintiff Leticia Rodriguez Reyes ("Plaintiff") filed a Complaint against defendants American Honda Motor Co., Inc. ("Defendant") and DOES 1 through 10.

On July 11, 2024, Plaintiff filed the First Amended Complaint ("FAC") against Defendant and DOES through 10. The FAC alleges the following causes of action: (1) Violation of subdivision (d) of Civil Code section 1793.2; (2) Violation of subdivision (b) of Civil Code section 1793.2; (3) Violation of subdivision (a)(3) of Civil Code section 1793.2; and (4) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794, 1795.5).

On July 11, 2025, Defendant served Plaintiff with a deposition notice.

(Declaration of Samantha M. Geraghty ("Geraghty Decl."), ¶ 6.) On July 18, 2025, Plaintiff served objections to the deposition notice, which indicated that both she and her counsel would be unable to attend the deposition due to unavailability. (Geraghty Decl., ¶ 7.) On July 21, 2025, Defendant confirmed receipt of the objections and requested new dates for the deposition; however, Plaintiff's counsel did not respond. (Geraghty Decl., ¶ 8.)

On July 25, 2025, Defendant's counsel filed a motion to compel Plaintiff's deposition. (Geraghty Decl., ¶ 9.) On September 24, 2025, Plaintiff's counsel emailed Defendant's counsel to inform them that Plaintiff would be available for deposition on December 16, 2025. (Geraghty Decl., ¶ 10.) On the same day, the Court denied Defendant's motion to compel as Plaintiff had provided their availability for the deposition. (Geraghty Decl., ¶ 11.)

Defendant served Plaintiff with an amended notice of deposition, scheduling the deposition for December 16, 2025. (Geraghty Decl., ¶ 12.) On December 11, 2025, Plaintiff served objections to the amended notice, stating that the deposition had been scheduled unilaterally and that she and her counsel would not be available to attend. (Geraghty Decl., ¶ 13.) On the same day, Defendant's counsel emailed Plaintiff's counsel to confirm her appearance at the noticed deposition, as this was the previously agreed-upon date. (Geraghty Decl., ¶ 14.) However, Plaintiff's counsel did not respond. (Geraghty Decl., ¶ 15.)

On December 16, 2025,
Defendant's counsel attended the deposition; however, neither Plaintiff nor her
counsel was present. (Geraghty Decl., ¶
15.) Consequently, Defendant took a
certificate of nonappearance. (Geraghty
Decl., ¶ 15.)

On December 19, 2025,
Defendant's counsel sent an email requesting new dates for the deposition. (Geraghty Decl., ¶ 16.)

On January 22, 2026,
Defendant filed its second motion to compel the deposition of Plaintiff. (Geraghty Decl., ¶ 17.) On February 23, 2026, the
Court granted the motion,
ordering that Plaintiff attend her deposition no later than March 23, 2026. (Geraghty Decl., ¶ 18, Exh. 1.) On February 25,
2026, Defendant's counsel served
the Notice of Ruling concerning this order on Plaintiff's counsel. (Geraghty Decl., ¶ 19, Exh. 2.)

On March 10, 11, 12, and 19,
2026, Defendant's counsel sent multiple emails to Plaintiff's counsel requesting
Plaintiff's availability for her deposition.
(Geraghty Decl., ¶¶ 20-23, Exhs. 3.)
No response was received from Plaintiff's counsel until March 20, 2026. (Geraghty Decl., ¶ 24, Exh. 4.) Plaintiff's counsel
asserted that Plaintiff "will
need her daughter's assistance with the deposition. The daughter will be available the week of
April 13, 2026 – April 17, 2026, so we can schedule the deposition that week." (Geraghty Decl., ¶ 24, Exh. 4.)

On March 24, 2026, Defendant's
counsel confirmed that April 15, 2026, was an acceptable date for the
deposition. (Geraghty Decl., ¶ 24, Exh.
4.) On the same day, Defendant's counsel
served an amended deposition notice, scheduling the deposition for April 15,
2026, at 10:00 a.m. via Zoom. (Geraghty
Decl., ¶ 25, Exh. 5.)

On April 8, 2026, Plaintiff
served objections to the deposition notice, asserting that "[t]his deposition
was unilaterally noticed by Defendant for a date and time on which Plaintiff
and/or Plaintiff's counsel is unavailable."
(Geraghty Decl., ¶ 26, Exh. 6.)

On the same day, Defendant's counsel emailed Plaintiff's counsel, reminding them that the deposition date had been mutually agreed upon and asserting that Plaintiff was in violation of the Court's order. (Geraghty Decl., ¶ 27, Exh. 7.) Defendant's counsel requested that "Plaintiff [] withdraw this objection and [] appear for deposition on the agreed-upon date in compliance with the Court's Order. Absent such confirmation, Defendant will seek Court intervention, including an order compelling Plaintiff's appearance and the imposition of appropriate sanctions." (Geraghty Decl., ¶ 27, Exh. 7.) Plaintiff's counsel did not respond to this email. (Geraghty Decl., ¶ 27.)

On April 8, 2026, Defendant's counsel sent a follow-up email, informing Plaintiff that a failure to attend the deposition scheduled for April 15, 2026, would result in Defendant pursuing terminating, issue, and evidentiary sanctions. (Geraghty Decl., ¶ 28, Exh. 8.) Once again, Plaintiff's counsel did not respond. (Geraghty Decl., ¶ 28.)

On April 15, 2026, Defendant's counsel attended the deposition; however, neither Plaintiff nor her counsel was present. (Geraghty Decl., ¶ 29.) Consequently, Defendant took a certificate of nonappearance. (Geraghty Decl., ¶ 29.)

Procedural Background

On April 27, 2026, Defendant filed this motion.

On April 29, 2026, Defendant filed the Ex Parte Application for an Order to Advance the Hearing on Defendant's Motion to Compel Compliance with the Court's February 23, 2026, Order Compelling Plaintiff's Deposition and Request for Terminating Sanctions, or, in the Alternative, Evidentiary and Monetary Sanctions and to Continue Trial.

On April 30, 2026, Department

B of the Torrance Courthouse partially granted Defendant's ex parte application. (April 30, 2026, Minute Order, p. 1.) The Court advanced the jury trial and final status conference to April 30, 2026, and subsequently vacated those dates, while the motion's hearing date remained unchanged. (April 30, 2026, Minute Order, p. 1.) As a result, the trial and final status conference are no longer scheduled. (April 30, 2026, Minute Order, p. 1.)

On June 29, 2026, Plaintiff filed an opposition brief. To date, no reply brief has been filed.

LEGAL STANDARD

If a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions.

(Code Civ. Proc., §§ 2025.450, subd. (h), 2030.290, subd. (c), 2031.300, subd. (c), 2033.290, subd. (e).) Code of Civil Procedure section 2023.030 provides that, "[t]o the extent authorized by the chapter governing any particular discovery method ... , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose ... [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process[.]" Code of Civil Procedure section 2023.010 states, "Misuses of the discovery process include, but are not limited to, the following: ... (d) Failing to respond or to submit to an authorized method of discovery... (g) Disobeying a court order to provide discovery." (Code Civ. Proc., § 2023.010.)

Upon finding a party has engaged in a misuse of the discovery process, the trial court has discretion to impose monetary, issue, or evidentiary sanctions. (Code Civ. Proc., § 2023.030, subds. (a)-(c).)

"The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by

anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

(Code Civ. Proc., § 2023.030, subd. (a).) Issue sanctions may designate facts that shall be taken as established in the action in accordance with the claim of the party adversely affected by a misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (b).) Evidentiary sanctions may prohibit any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (Code Civ. Proc., § 2023.030, subd. (c).)

“Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. [Citation.]

Because discovery sanctions are not designed to punish, ‘ ‘sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct.’ ’ [Citation.]” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 74 (Kwan).) Discovery sanctions are matters squarely within the trial court's discretion and will not be returned except in instances of extreme abuse. (Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1102.)

“The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’ ” (Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390, quoting Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

“Generally, ‘[a] decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate

sanction.” (Los Defensores, Inc. v. Gomez, supra, 223 Cal.App.4th at p. 390, citation omitted.)

“Under this standard, trial courts have properly imposed terminating sanctions when parties have willfully disobeyed one or more discovery orders.” (Los Defensores, Inc. v. Gomez, supra, 223 Cal.App.4th at p. 390, citing Lang v. Hochman, supra, 77 Cal.App.4th at pp. 1244-1246 [discussing cases]; see, e.g., Collisson & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1617-1622 [terminating sanctions imposed after defendants failed to comply with one court order to produce discovery]; Laguna Auto Body v. Farmers Ins. Exchange (1991) 231 Cal.App.3d 481, 491, disapproved on other grounds in Garcia v. McCutchen (1997) 16 Cal.4th 469, 478, fn. 4 [terminating sanctions imposed against plaintiff for failing to comply with a discovery order and for violating various discovery statutes].)

DISCUSSION

Defendant moves the Court to impose terminating sanctions against Plaintiff due to her failure to comply with the Court’s order dated February 23, 2026, which mandated her appearance for deposition by March 23, 2026. (Motion, pp. 1:3-2:3.) In the alternative, Defendant seeks evidentiary sanctions that would bar Plaintiff from testifying at trial. (Motion, p. 2:4-8.) Additionally, Defendant requests monetary sanctions to recover costs incurred because of Plaintiff’s noncompliance. (Motion, p. 2:9-10.) The Court notes that the Defendant is not moving to compel Plaintiff’s deposition, despite what the title indicates.

Terminating Sanctions

The imposition of terminating sanctions is unwarranted at this stage. Notwithstanding Plaintiff’s willfully failed to comply with the February 23, 2026 order, there is no documented history of abuse on the part of Plaintiff, nor is there sufficient evidence to support the notion that less severe sanctions would be ineffective in ensuring compliance with the discovery rules. (Los Defensores, Inc. v. Gomez, supra, 223 Cal.App.4th at p. 390.)

On January 22, 2026, Defendant filed its second motion to compel the

deposition of Plaintiff. (Geraghty Decl., ¶ 17.) On February 23, 2026, the Court granted the motion, ordering that Plaintiff attend her deposition no later than March 23, 2026. (Geraghty Decl., ¶ 18, Exh. 1.) On February 25, 2026, Defendant's counsel served the Notice of Ruling concerning this order on Plaintiff's counsel. (Geraghty Decl., ¶ 19, Exh. 2.)

On March 10, 11, 12, and 19, 2026, Defendant's counsel sent multiple emails to Plaintiff's counsel requesting Plaintiff's availability for her deposition. (Geraghty Decl., ¶¶ 20-23, Exhs. 3.) No response was received from Plaintiff's counsel until March 20, 2026. (Geraghty Decl., ¶ 24, Exh. 4.) Plaintiff's counsel asserted that Plaintiff "will need her daughter's assistance with the deposition. The daughter will be available the week of April 13, 2026 – April 17, 2026, so we can schedule the deposition that week." (Geraghty Decl., ¶ 24, Exh. 4.)

On March 24, 2026, Defendant's counsel confirmed that April 15, 2026, was an acceptable date for the deposition. (Geraghty Decl., ¶ 24, Exh. 4.) On the same day, Defendant's counsel served an amended deposition notice, scheduling the deposition for April 15, 2026, at 10:00 a.m. via Zoom. (Geraghty Decl., ¶ 25, Exh. 5.)

On April 8, 2026, Plaintiff served objections to the deposition notice, asserting that "[t]his deposition was unilaterally noticed by Defendant for a date and time on which Plaintiff and/or Plaintiff's counsel is unavailable." (Geraghty Decl., ¶ 26, Exh. 6.)

On the same day, Defendant's counsel emailed Plaintiff's counsel, reminding them that the deposition date had been mutually agreed upon and asserting that Plaintiff was in violation of the Court's order. (Geraghty Decl., ¶ 27, Exh. 7.) Defendant's counsel requested that "Plaintiff [] withdraw this objection and [] appear for deposition on the agreed-upon date in compliance with the Court's Order. Absent such confirmation, Defendant will seek Court intervention, including an order compelling Plaintiff's appearance and the imposition of

appropriate sanctions.” (Geraghty Decl., ¶ 27, Exh. 7.) Plaintiff’s counsel did not respond to this email. (Geraghty Decl., ¶ 27.)

On April 8, 2026, Defendant’s counsel sent a follow-up email, informing Plaintiff that a failure to attend the deposition scheduled for April 15, 2026, would result in Defendant pursuing terminating, issue, and evidentiary sanctions. (Geraghty Decl., ¶ 28, Exh. 8.) Once again, Plaintiff’s counsel did not respond. (Geraghty Decl., ¶ 28.)

On April 15, 2026, Defendant’s counsel attended the deposition; however, neither Plaintiff nor her counsel was present. (Geraghty Decl., ¶ 29.) Consequently, Defendant took a certificate of nonappearance. (Geraghty Decl., ¶ 29.)

Plaintiff contends that her failure to comply with the Court’s order was not willful. She explains that her absence from the deposition scheduled for April 15, 2026, was due to factors beyond her control and a mistake by her counsel, who marked that the deposition had already occurred. (Opp., p. 3:17-23; Declaration of Paul Peterson, ¶¶ 5-6.) Furthermore, Plaintiff asserts that she “offered dates beginning on the very day the Court’s Order issued, and, after the deadline passed, proactively offered a further specific date of July 2, 2026.” (Opp., p. 6:13-14.) However, the Court finds these assertions unpersuasive.

Plaintiff does not specify the circumstances that prevented her from attending the deposition, nor does she provide evidence to show that she offered alternative deposition dates beyond those submitted on March 20, 2026, which she later canceled without justification. The evidence indicates that her counsel neglected to communicate with Defendant or to propose alternative dates after raising an inaccurate objection to the agreed-upon deposition date. This leads the Court to conclude that Plaintiff may be unwilling to fulfill her deposition obligations.

However, this incident marks Plaintiff’s first violation of a court order. The defendant has not provided sufficient evidence to indicate that less severe sanctions would be ineffective in ensuring compliance with discovery obligations or the Court’s order. Consequently, while the Court recognizes that

Plaintiff willfully failed to comply with its order, it does not find terminating sanctions to be warranted at this stage. Should Plaintiff continue to willfully disregard the Court's order to appear for her deposition, the Court will consider the imposition of terminating sanctions.

Evidentiary Sanctions

The Court finds that the imposition of evidentiary sanctions is justified. The requested sanctions are proportionate to Plaintiff's conduct, particularly in light of her continued refusal to comply with the Court's order. (Kwan, supra, 58 Cal.App.5th at p. 74.)

The record demonstrates that Defendant has been attempting to schedule Plaintiff's deposition for nearly one year. (Geraghty Decl., ¶ 6.) Plaintiff's failure to appear for her deposition has hindered Defendant's ability to evaluate Plaintiff's claims, prepare for trial, and engage meaningfully in settlement negotiations. (Motion, p. 1-3.) Moreover, the Court notes that Plaintiff's noncompliance has forced the Court to advance and vacate the trial date, delaying the resolution of this case. (April 30, 2026, Minute Order, p. 1.) As such, the evidentiary sanction of precluding Plaintiff from testifying at trial is GRANTED.

Monetary Sanctions

The defendant moves the Court for monetary sanctions in the amount of \$2,232.50 against Plaintiff and her counsel to cover the attorneys' fees and costs associated with bringing this motion. (Motion, pp. 9:18-10:10.)

Pursuant to the Defendant's counsel, Samantha M. Geraghty declaration, counsel spent 3.4 hours drafting the motion and conferring with Plaintiff's counsel, billing at a rate of \$275.00 per hour. (Geraghty Decl., ¶ 31.) Geraghty also anticipates that an additional 1.5 hours will be necessary to review the opposition and prepare the reply, and an estimated 3.0 hours to attend the hearing on this motion. (Geraghty Decl., ¶ 31.) Furthermore, Defendant incurred \$60.00 in filing fees for this motion. (Geraghty Decl., ¶ 31.)

Monetary Sanctions are warranted based on the Plaintiff misuse of the

discovery process by failing to attend her deposition which was ordered and scheduled twice, and Counsel continuously ignoring of the Defendant's attempts to schedule the deposition. As such, Plaintiff's request for monetary sanctions against in the amount of \$2,232. 50 is GRANTED.

ORDERS

1) Defendant

American Honda Motor Co., Inc.'s Motion to Compel Compliance with the Court's February 23, 2026, Order and Requests for Terminating Sanctions is DENIED.

2) Defendant's

Request for Evidentiary Sanctions is GRANTED.

3) Plaintiff

Leticia Rodriguez Reyes is precluded from testifying at trial.

4) Defendant's Request for Monetary

Sanctions is GRANTED in the amount of \$2,232.50.

5) Plaintiff

and her counsel, jointly and severally, are ordered to pay Defendant's counsel said amount on or before July 31, 2026.

6) The

defendant is ordered to give notice of this Court's ruling.

IT

IS SO ORDERED.

DATED: July 13, 2026

Tamara
Hall

Judge
of the Superior Court